

11 August 2022

Richard Mclean  
2 MCCUBBIN STREET  
FOOTSCRAY VIC 3011

**CLAIM NUMBER**

**09060103251**

*(Please include this number on  
documents you send about this claim)*

**DATE OF INJURY**

1 October 2005

**EMPLOYER**

MELBOURNE HEALTH

Dear Richard

**Returning your claim for compensation - a valid claim is required**

DXC Integrated Services Victoria Pty Ltd (DXC) received your claim for Impairment Benefits on 10<sup>th</sup> May 2022. However, we are unable to process your claim for Impairment Benefits because the claim form contains a material defect, irregularity or omission as follows:

- the authority to release medical information in the claim form is not signed.

Please note that the time period for DXC to deal with your claim under the *Workplace Injury Rehabilitation and Compensation Act 2013* (the Act) does not commence until we receive your completed claim for compensation in the approved form.

**DXC reasons for this decision?**

Under the Act a claim for compensation that contains a material defect, irregularity or omission, including relating to information that is not within the knowledge of the employer, WorkSafe Victoria (WorkSafe) or its Agents, is deemed not to have been made if the claim is returned with specific details of the defect, irregularity or omission within 14 days.

**What do I need to do?**

**Action Required**

A claim for Impairment Benefits does not comply with the Act unless the Authority to Release Medical Information in section 6 of the claim form is signed. Once you have done this, please return the claim form to DXC for processing.

**Can I dispute this decision?**

Yes. If you dispute this decision or this notice, you have the legal right to:

## 1. Refer a dispute to the Accident Compensation Conciliation Service (ACCS)

To refer a dispute to the ACCS you must send or deliver a Request for Conciliation form to:

*The Senior Conciliation Officer,  
ACCS, Level 1, 215 Spring Street, Melbourne, VIC 3000*

Please send or deliver the form within 60 days of receiving this letter.

The Senior Conciliation Officer may allow the application to be lodged more than 60 days after the decision if the particular circumstances are considered appropriate. Reasons for a late lodgement must be provided with the request form.

Request for Conciliation forms are available from DXC. You can also obtain a form and information brochure from the ACCS at **conciliation.vic.gov.au** or by calling 1800 635 960. Conciliation is a free service.

## 2. Go to Court to challenge the decision

You can apply to the Magistrates' Court or the County Court to challenge the decision.

Usually, you can't do this until the Conciliation Officer gives you a certificate to say that the Conciliation process has finished. The Conciliation Officer won't do this until they are satisfied that you have taken all reasonable steps to settle the dispute.

You should consider getting advice from a lawyer before going to Court. The Law Institute of Victoria can refer you to a lawyer who may be able to assist you. Their details are in the fact sheet enclosed with this letter.

### Can I ask DXC to reconsider its decision?

Yes. In addition to the legal right of review provided by the legislation you may also ask DXC to undertake an internal review of the decision.

To assist with the internal review, you should explain why you disagree with the original decision. You can also give DXC any additional information you have which is relevant to the decision. We will pay the **reasonable** costs of obtaining that additional information.

Asking for internal review does not affect your legal rights. It also does not stop the time period to lodge your review with the ACCS. You do not need to wait to request a conciliation just because you have requested an internal review.

### Who can I get assistance from?

To make a general enquiry or for assistance with disputed claims and the ACCS process, please refer to 'Getting assistance for your conciliation' (enclosed).

### Where can I get more information?

- Contact me on freecall 1800 801070 or directly on my number below
- Download the free **VicClaim** app from Google Play or the App Store
- Go to the WorkSafe Victoria website **worksafe.vic.gov.au**

Yours sincerely,

Impairment Benefits Team  
DXC Integrated Services Victoria Pty Ltd

**On behalf of WorkSafe Victoria**  
**a trading name of the Victorian WorkCover Authority**

## Getting assistance for your conciliation

There are a number of places you can turn to for assistance with disputes on claims and the Accident Compensation Conciliation Service process including:

- **A solicitor** - if you do not have a solicitor, you may wish to phone the Law Institute of Victoria's legal referral service for advice on (03) 9607 9550.
- **Union Assist** - a free and independent service which offers support, guidance and advice. Operated by the Victorian Trades Hall Council. Please call (03) 9639 6144.
- **WorkCover Assist** - a free service provided by WorkSafe Victoria. They offer support and guidance and can simplify the dispute resolution process for you. Please call (03) 9941 0537.
- **Your union** - contact details for unions operating in Victoria are detailed in the table below.

| Union                                                                                                                       | Phone Number   |
|-----------------------------------------------------------------------------------------------------------------------------|----------------|
| Ambulance Employees Australia                                                                                               | (03) 9235 7675 |
| Association Of Professional Engineers, Scientists And Managers, Australia (APESMA)                                          | (03) 9695 8807 |
| Australasian Meat Industry Employees' Union (AMIEU)                                                                         | (03) 9662 3766 |
| Australian Education Union Victorian Branch (AEUVB)                                                                         | (03) 9417 2822 |
| Australian Institute Of Marine And Power Engineers (AIMPE)                                                                  | (03) 9690 0506 |
| Australian Licenced Aircraft Engineers Association (ALAEA)                                                                  | (03) 9691 7103 |
| Australian Manufacturing Workers Union (AMWU)                                                                               | (03) 9230 5700 |
| Australian Nursing Federation (ANF)                                                                                         | (03) 9275 9333 |
| Australian Principals Federation (APF)                                                                                      | (03) 8566 7627 |
| Australian Services Union (ASU) - Victorian Authorities & Services Branch                                                   | 1300 855 570   |
| - Victorian Private Sector Branch                                                                                           | (03) 9320 6700 |
| Australian Workers Union (AWU)                                                                                              | 1300 362 298   |
| Blind Workers Union Of Victoria (BWU Of V)                                                                                  | (03) 8378 1205 |
| Civil Air Operations (CAOOAA)                                                                                               | (03) 9647 9100 |
| Communications, Electrical, Electronic, Energy, Information, Postal, Plumbing And Allied Services Union Of Australia (CEPU) |                |
| - Communications Workers Union (CWU)                                                                                        | (03) 9349 2100 |
| - Electrical Trades Union (ETU)                                                                                             | (03) 8329 0000 |
| - Plumbing Trades Employees Union (PTEU)                                                                                    | (03) 9662 3388 |
| Community and Public Sector Union - PSU Group                                                                               | 1800 137 636   |
| - State Public Services Federation (CPSU/SPSF)                                                                              | (03) 9639 1822 |
| Construction, Forestry, Mining & Energy Union (CFMEU)                                                                       |                |
| - Construction & General Division                                                                                           | (03) 9341 3444 |
| - Forestry & Furnishing Products Division (FFPD) - Victorian Forestry District                                              | (03) 9274 9200 |
| - Pulp & Paper Workers' District                                                                                            |                |
| - Mining & Energy Division                                                                                                  | (03) 5134 3311 |
| Finance Sector Union Of Australia (FSU)                                                                                     | 1300 366 378   |
| Flight Attendants Association Of Australia (FAAA)                                                                           | 1800 733 222   |
| Health Services Union (HSU) Victoria - No 1 Branch                                                                          | 1800 331 974   |
| No 2 Branch - Health and Community Services Union (HACSU)                                                                   | 1300 651 931   |
| No 3 Branch - Health Professionals                                                                                          | (03) 9341 3390 |
| No 4 Branch - Association of Hospital Pharmacists (AHP)                                                                     |                |
| - Medical Scientists Association of Victoria (MSAV)                                                                         |                |
| - Victorian Psychologists Association Incorporated (VPA)                                                                    | (03) 9623 9623 |
| Independent Education Union (IEU)                                                                                           | (03) 9254 1860 |
| Maritime Union of Australia (MUA)                                                                                           | (03) 9329 5477 |
| Media, Entertainment & Arts Alliance (MEAA)                                                                                 | 1300 656 512   |
| National Tertiary Education Union (NTEU)                                                                                    | (03) 9254 1930 |
| National Union Of Workers (NUW)                                                                                             | (03) 9287 1777 |
| The Police Association of Victoria (TPAV)                                                                                   | (03) 9468 2600 |
| Professional Footballers Association (PFA)                                                                                  | (03) 9287 1888 |
| Rail, Tram & Bus Union (RTBU)                                                                                               | (03) 9600 3030 |
| Shop, Distributive and Allied Employees' Association (SDA)                                                                  | (03) 9698 1400 |
| Textile, Clothing And Footwear Union Of Australia (TCFUA)                                                                   | (03) 9639 2955 |
| Transport Workers Union Of Australia (TWU)                                                                                  | 1300 727 614   |
| United Firefighters Union (UFU)                                                                                             | (03) 9419 8811 |
| United Voice                                                                                                                | (03) 9235 7777 |